

land, under sect. 18 of the Act; (5). Three-fourths of the net proceeds of the sale of timber cut under the powers of sect. 35, where the tenant for life *is [*562] impeachable for waste in respect of timber; and (6).

Money arising from the sale of heirlooms under sect. 37 of the Act.

Money arising from other sources.—By sect. 32, where under an Act incorporating or applying, wholly or in part, the Lands Clauses Consolidation Acts, or under the Settled Estates Act, 1877, or under any other Act, public, local, personal, or private, money is at the commencement of the Act in Court, or is afterwards paid into Court, and is liable to be laid out in the purchase of land to be made subject to a settlement, then, in addition to any mode of dealing therewith authorised by the Act under which the money is in Court, that money may be invested or applied as capital money arising under the Settled Land Act. And by sect. 33, where, under a settlement, money is in the hands of trustees (*a*), and is liable to be laid out in the purchase of land to be made subject to the settlement, then, in addition to such powers of dealing therewith as trustees have independently of the Act, they may, at the option of the tenant for life, invest or apply the same as capital money arising under the Act.

17. Application of capital money.—By sect. 21, capital money arising under the Act, subject to payment of claims properly payable thereout, and to application thereof for any special authorised object for which the same was raised, is to be invested or applied in one or more of the following modes:

(1). In investment on Government securities, or on other securities on which the trustees of the settlement are by the settlement or by law (*b*) authorised to invest trust money of the settlement, or on the security of the bonds, mortgages,

(*a*) It has been held in Ireland that this section does not apply to money in Court in an administration action, which has arisen from personal estate given to trustees upon trust to convert and to invest the proceeds in the purchase of lands to be settled; *Burke v. Gore*, 13 L. R. Ir. 367.

(*b*) As to investments authorised by law see *ante*, Chap. xiv. s. 4.